

25AVCV00664 25AVCV00664

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Case Number: 25AVCV00664 Hearing Date: August 25, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

LUCIA DE LA MORA,

Plaintiff,

v.

CITY OF PALMDALE; and DOES 1 through 50, inclusive,

Defendants.

Case Number 25AVCV00664

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing: August 25, 2026

Dept. A-14

Judge William H. Forman

I. Background

This is a negligence and premises liability case. Defendant City of Palmdale (Defendant) moves the Court for leave to conduct a mental health examination of Plaintiff Lucia De La Mora (Plaintiff).

On May 27, 2025, Plaintiff filed her complaint for damages asserting two causes of action for (1) dangerous condition of public property and (2) negligence. Plaintiff specifically alleges that a portion of the public sidewalk owned by Defendant was in a state of disrepair, and that she was thrown off her mobility scooter and suffered severe bodily injuries as a result. (Compl., ¶ 8.) Plaintiff seeks damages in relevant part for emotional distress. (Compl., Prayer for Relief, ¶ 1.)

On June 24, 2025, Defendant filed its answer.

On July 29, 2026, Defendant filed the present motion for leave to conduct a mental health examination of Plaintiff.

On July 31, 2026, Defendant filed an ex parte motion to advance the hearing date on the present motion.

On July 31, 2026, Plaintiff filed her opposition.

On August 18, 2026, Defendant filed its reply.

II. Preliminary Procedural Issues

Plaintiff's Opposition – The Court notes that Plaintiff filed an opposition apparently to both Defendant's motion and the ex parte request to advance trial, on July 31, 2026. No other opposition has been received to date. The Court will consider Plaintiff's opposition to Defendant's ex parte request as her opposition to the motion.

Meet and Confer – A motion for leave to obtain discovery by mental examination must be accompanied by a meet and confer declaration stating facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented in the motion, and include whether the parties have met and conferred regarding the retention of a certified shorthand reporter to report the hearing on the motion. (Code Civ. Proc., §§ 2032.310, subd. (b), 2016.040.)

Defense counsel Maureen Rubin declares she attempted to meet and confer with Plaintiff's counsel on the issue of a mental health examination, but that the parties have been unable to come to an agreement. (Rubin Decl., ¶ 9.) Rubin attaches email correspondence and a meet and confer letter from Plaintiff regarding the mental health examination request. (Rubin Decl., Ex. K, L.) Plaintiff's counsel Kevin M. Davis attests that the parties have met and conferred regarding Defendant's request and that Plaintiff's counsel remains willing to continue meet and confer efforts in person regarding the scope of any examination ordered by the Court, but maintains his objections to the issuance of such an order. (Davis Decl., ¶¶ 4, 8, Ex. 1-2.)

The meet and confer requirement is substantially satisfied.

III. Legal Standard

Standard for Mental Examination – To obtain discovery by mental examination, a party must obtain leave of court. (Code Civ. Proc., § 2032.310, subd. (a).) The motion for a mental examination must specify “the time, place, manner, conditions, scope, and nature of the examination, as well as the identity and the specialty, if any, of the person or persons who will perform the examination.” (Code Civ. Proc., § 2032.310, subd. (b).) Any party may obtain discovery by mental examination of another party’s mental condition if it is in controversy in the action. (Code Civ. Proc., § 2032.020, subd. (a).) Moreover, Pursuant to Section 2032.320, subdivision (d), the specific diagnostic tests to be performed must be explicitly identified in the court’s order and include the time, place, manner, diagnostic tests and procedures, conditions, scope, and nature of the examination.

The court shall grant a motion for a mental examination only for good cause shown. (Code Civ. Proc., § 2032.320, subd. (a).) To establish “good cause,” the moving party must produce specific facts justifying the discovery and that the subject matter is relevant to the action. (Vinson v. Superior Court (1987) 43 Cal.3d 833, 840.) One party’s unsubstantiated allegation cannot put the mental state of another in controversy. (Id. at 839.) “While a plaintiff may place his mental state in controversy by a general allegation of severe emotional distress, the opposing party may not require him to undergo psychiatric testing solely on the basis of speculation that something of interest may surface.” (Id. at 840.) If a party stipulates that no claim is being made for mental or emotional distress over and above that usually associated with the physical injuries claimed and that no expert testimony regarding this usual mental and emotional distress will be presented at trial in support of the claim for damages, a mental examination may only be ordered on a showing of exceptional circumstances. (Code Civ. Proc., § 2032.320, subds. (b)-(c).)

Additionally, the party who seeks to compel a mental examination bears the burden to specify the diagnostic tests and procedures to be conducted. (Carpenter v. Superior Court (2006) 141 Cal.App.4th 249, 267.) “Insisting that section 2032.320 means what it says—that the diagnostic tests and procedures must be specified—will result in an orderly and efficient means of balancing the interests of the plaintiff and defendant. The defendant, aware that the court must name the diagnostic tests and procedures in the order granting a mental examination, will identify the potential tests and procedures in its moving papers. The plaintiff, assisted by counsel and a psychologist or other expert, may consider whether the proposed tests are inappropriate, irrelevant, or abusive, and submit evidence and argument to that effect if necessary.” (Ibid.)

IV. Discussion

Application – Defendant moves for leave to conduct a mental examination of Plaintiff pursuant to Code of Civil Procedure sections 2032.310 and 2032.320 on the grounds that Plaintiff has placed her mental health at issue and good cause exists to order a mental health examination. (Notice, p. 2:6-8.) Defendant’s motion is based on Plaintiff’s exceptional personal life circumstances predating the subject incident, evidenced by Plaintiff’s responses to Defendant’s discovery requests, her testimony at deposition, and medical records regarding her prior circumstances and mental health.

Defendant specifically notes that in response to Form Interrogatory No. 6.3, Plaintiff details severe emotional distress requiring ongoing, biweekly medical and therapeutic intervention with her psychologist Norma Ruiz (Ruiz). (Motion, p. 1:10-2:14; Rubin Decl., Ex. B, C.) Plaintiff also details the same emotional distress in her responses to Defendant’s Special Interrogatories. (Motion, p. 2:15-16; Rubin Decl., Ex. D, E.) Plaintiff then provided amended responses to Form Interrogatory No. 6.4 which identified Caring Connections as one of Plaintiff’s treatment providers, and an amended response to Special Interrogatory No. 11 identifying Ruiz with Caring Connections as her treatment provider. (Motion, p. 2:17-22; Rubin Decl., Ex. F, G.)

During Plaintiff’s deposition on June 18, 2026, Plaintiff testified that she attends therapy with Ruiz at Caring Connections and testified to several significant prior life events which continue to emotionally impact her. (Motion, p. 2:22-23; Rubin Decl., Ex. H.) Defendant asserts that good cause exists to grant the present motion due to Plaintiff’s life circumstances, which based on Plaintiff’s discovery responses, testimony, and medical records include Plaintiff’s life partner of eight years passing away on October 12, 2023, Plaintiff becoming homeless only days after her partner’s passing, Plaintiff suffering from ongoing depression since the passing of her partner, Plaintiff being placed on a 5150 hold by the Sheriff’s Office after allegedly

attempting to cut herself with a box cutter and suffering from major depressive disorder on June 29, 2024, less than a month prior to the subject incident, and Plaintiff's distrust of hospitals leading to her decision not to seek medical treatment for her injuries for three weeks. (Motion, p. 2:24-26, 3:18-19, 4:18-26, 5:1-5; Rubin Decl., Ex. H, I, J.)

Defendant thus believes and requests the Court's opinion of whether Plaintiff has placed her mental health at issue in this action and seeks leave for Dr. Marc Cohen, MD, MS to conduct a mental examination of Plaintiff to collect specific, detailed information about Plaintiff's life history, signs, symptoms, current mental state, and other issues to make a diagnosis, including major life events and traumatic experiences. (Motion, p. 5:27-6:25.) The examination would be reserved for a full eight hours and include a recorded psychiatric interview, administration of eight psychiatric tests and examinations, and a detailed inquiry into Plaintiff's psychiatric and mental health treatment history, family history, social history, substance use, criminal history, medical history, current medications, sexual and relationship histories, and other subject matters. (Cohen Decl., ¶¶ 7, 21, 31.)

In opposition, Plaintiff argues that she, like virtually every other personal injury plaintiff in California, intends to testify to the pain, suffering, and emotional distress related to the subject accident that CACI No. 3905A allows a jury to consider in awarding noneconomic damages. (Opp., p. 0:5-7.) Plaintiff further asserts she has not pleaded a freestanding psychiatric injury, designated a retained mental-health expert, and confirmed to Defendant in writing that she will not call her therapist as a trial witness or introduce her therapy records, rendering this a claim for "garden variety" emotional distress associated with the injuries claimed. (Opp., p. 0:10-11.) Plaintiff further argues that her deposition testimony about her mental health was elicited through targeted questioning about Plaintiff's life history that Defendant chose to pursue over relevance objections by Plaintiff's counsel. (Opp., p. 1:20-24.) Plaintiff asserts that the only evidence placed into controversy in the present action is Plaintiff's physical pain, mental suffering, and emotional distress under CACI 3905A, and Defense counsel's decision not to ask any questions related to Plaintiff's emotional distress arising from the underlying action in this case does not justify a mental examination of Plaintiff. (Opp., p. 2:1-4.)

Plaintiff also states that her counsel never indicated an intent to designate a retained psychiatric expert or otherwise place a psychiatric diagnosis at issue and attempted to clarify and narrow her position with Defense counsel in writing by stating she will not call Ruiz and will not submit medical records at trial. (Opp., p. 2:12-16.) Plaintiff further offers to execute the statutory stipulation set forth in Code of Civil Procedure section 2032.320, subdivision (c) and declares that Plaintiff is making no claim for mental or emotional distress over and above that usually associated with the physical injuries claimed in this action and that no expert testimony regarding that usual mental or emotional distress will be presented at trial. (Opp., p. 2:24; Davis Decl., Ex. 3.) Plaintiff further argues that in light of Plaintiff's stipulation, Defendant must show exceptional circumstances to compel a mental examination of Plaintiff, and the factual showing made by Defendant is insufficient to establish even the lower standard of good cause because (1) mental examination is not needed to uncover Plaintiff's history considering Defendant already obtained the information from Plaintiff's records, discovery responses, and testimony, (2) prior life stressors and pre-existing conditions are the ordinary stuff of apportionment and causation in personal injury litigation, and Defendant is free to argue at trial subject to restriction that some portion of Plaintiff's claimed distress predates the incident and is not attributable to Defendant's conduct, and (3) Defendant's proposition that Plaintiff's counsel stating the emotional damages were great evidences a psychiatric injury misreads the record. (Opp., p. 5:1-24.)

On reply, Defendant acknowledges Plaintiff's counsel's stipulation to limit emotional distress damages and not to offer any expert testimony or records regarding Plaintiff's emotional damages, but nonetheless asserts that exceptional circumstances exist here to compel a mental examination and Defendant's calling of an expert because Plaintiff's life experiences of the death of her partner, homelessness, and alleged suicide attempt are not ordinary life events, and because Plaintiff admitted to continued depression as a result of these circumstances, Plaintiff has placed causation of her emotional distress at issue. (Reply, p. 2:12-20.) Defendant reiterates that notwithstanding the stipulation, amended discovery responses, and assurances from Plaintiff's counsel on the record, "Defendant is still concerned that Plaintiff is seeking more than that emotional distress usually associated with the injuries claimed."

As a preliminary matter, the Court notes that because Plaintiff has submitted an executed stipulation pursuant to Code of Civil Procedure section 2032.320, subdivision (c), the standard for granting the present motion is a finding of exceptional circumstances, which neither party appears to dispute. (Code Civ. Proc., § 2032.320, subd. (b).) Thus, the issues presented are (1) whether Plaintiff has placed her mental state in controversy and (2) whether Defendant has shown exceptional circumstances warranting a mental examination.

When a plaintiff asserts mental and emotional ailments caused by the actions of the defendant, her mental state in dispute, and when a plaintiff asserts a causal link between mental distress and the defendant's conduct, she implicitly claims it was not caused by a preexisting condition, thereby raising a question of alternative sources for the distress and placing her mental state in controversy. (Vinson, *supra*, 43 Cal.3d at 839-40.) Thus, because Plaintiff here is claiming current and ongoing emotional distress damages as a result of the pending action, the Court finds that Plaintiff has placed her mental state in controversy.

Turning to the second question posed, "exceptional circumstances" include those situations where the plaintiff's mental condition would essentially remain in controversy notwithstanding the stipulation. (See Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 8:1568.) However, "one party's unsubstantiated allegation cannot put the mental state of another in controversy," and a plaintiff's mental condition cannot be placed in issue "merely upon speculation that there may be a 'connection' between the patient's past psychiatric treatment and some 'mental component' of his present injury." (Vinson, *supra*, 43 Cal.3d at p. 839; Roberts v. Superior Court (1973) 9 Cal.3d 330, 339; Huelter v. Superior Court (1978) 87 Cal.App.3d 544, 548-549.)

In light of the executed stipulation submitted by Plaintiff's counsel, Plaintiff's amended discovery responses, the breadth of the information currently held by Defendant, and the reasons proffered by Defendant in support of the motion, the Court finds that a mental health examination is not warranted under the present circumstances and Defendant has failed to meet its burden of establishing exceptional circumstances exist here.

Plaintiff's discovery responses as to injury she attributes to the underlying incident initially read, in relevant part, as follows:

The Responding Party reports significant emotional distress directly related to the occurrence of the incident, including persistent day-to-day stress and anxiety tied to both the traumatic fall from her mobility scooter and the resulting physical injuries she sustained. The Responding Party experienced immediate psychological trauma from the incident itself, having lost consciousness during the fall and feeling nervous immediately afterward. She has developed ongoing sleep disturbances that have persisted throughout her treatment period, with documented sleep difficulties appearing as early as August 2024 and continuing through November 2024, significantly impacting her ability to achieve restorative rest. The Responding Party reports a marked diminished ability to perform activities of daily living, which has created ongoing frustration and sadness as she struggles with tasks that were previously manageable despite her pre-existing limitations from her 2010 stroke. She experiences social isolation and withdrawal, with a documented limited ability to spend quality time with family and friends, leading to feelings of loneliness and disconnection from her support network. The Responding Party has developed occupational-related stress and anxiety due to her limited ability to perform effectively at her work, creating financial concerns and feelings of inadequacy. She reports heightened irritability and mood changes since the incident, with increased sensitivity to stressors in her daily environment. The Responding Party has developed specific fears and anxiety related to mobility and the possibility of experiencing another fall, particularly when navigating sidewalks or using her mobility scooter, which has created a persistent state of hypervigilance and worry about her safety. The combination of chronic pain, functional limitations, and the psychological impact of the traumatic incident has created a cycle of emotional distress that continues to affect her mental well-being and overall quality of life. The Responding Party has required ongoing, biweekly medical and therapeutic intervention with Norma Ruiz (psychologist) from approximately August 2025 until the present to address both the physical and emotional components of her injuries from this incident.

(Rubin Decl., Ex. C, p. 9:13-10:13, Ex. E, p. 18:22-19:22.)

While these claims and the circumstances presented may ordinarily permit a finding of good cause for examination, upon Defense counsel raising the concerns addressed in the present motion, Plaintiff's counsel agreed to narrow the issue of emotional distress, expressly stated Plaintiff will not retain or call Ruiz as an expert witness to testify regarding Plaintiff's mental health, will not submit Plaintiff's mental health records as evidence, amended her discovery responses to narrow the issue of emotional distress Plaintiff claims as a result of Defendant's alleged conduct, provided a stipulation signed by counsel to limit emotional distress damages and agree not to provide any expert testimony on the issue of Plaintiff's mental state, and has reiterated on the record to this Court that Plaintiff will not be seeking any emotional distress damages beyond the garden variety damages arising in personal injury cases.

Furthermore, on reply, Defendant acknowledges Plaintiff's counsel's stipulation and notes that on July 31, 2026, after the present motion was filed, Plaintiff served amended discovery responses to remove references to emotional distress injuries and her treating therapist. (Rubin Reply Decl., Ex. B, C.) Plaintiff's response to Defendant's Special Interrogatories was amended to read: "Noneconomic damages under CACI No. 3905A: Responding Party withdraws and amends the prior narrative response concerning separate "emotional injuries." Responding Party is not asserting a separate psychiatric injury, psychological disorder, psychiatric diagnosis, or independent mental-health condition arising from the INCIDENT. Responding Party is not claiming emotional distress damages over and above those usually associated with the physical injuries claimed. Responding Party will rely on her testimony and the evidence concerning ordinary noneconomic damages recoverable under CACI No. 3905A." (Rubin Decl., ¶ 4, Ex. C.) The response also reads "Responding Party claims present and future mental suffering, anxiety, humiliation and emotional distress only as ordinary noneconomic damages flowing from her physical pain, functional limitations, impaired mobility, and loss of independence, not as a separate psychiatric or psychological injury. At deposition, Responding Party tied her distress to being unable to handle the pain and being unable to do the things she used to do. Responding Party does not intend, by this amended response, to claim a separate mental-health diagnosis or freestanding psychiatric injury arising from the INCIDENT." (Rubin Reply Decl., Ex. C.)

While the Court recognizes that Plaintiff has faced exceptional hardships over the last few years, the Court fails to see how these hardships amount to exceptional circumstances that warrant the mental examination sought by Defendant. From the moving papers, it does not appear that Plaintiff's mental state is at issue notwithstanding the stipulation signed by counsel, but that Defendant doubts Plaintiff's agreement to limit her emotional distress claims and seeks leave to obtain expert opinion on the causation of the emotional distress purportedly suffered as a result of Plaintiff's fall. Furthermore, the Court finds Defendant's reliance on Plaintiff's deposition testimony misplaced, as on a review of the portions of the transcripts provided, it appears Defendant elected to ask Plaintiff questions regarding her prior health, mental health challenges, loss of her partner, and homelessness, but relatively few questions relating to her claims of emotional distress arising from the underlying incident. The Court does not find that Plaintiff providing answers to these questions is sufficient to warrant a mental examination in light of Plaintiff's efforts to limit the scope of the emotional distress damages claimed.

Therefore, Defendant's request is DENIED. Plaintiff's counsel is ordered to file the proposed stipulation for the Court's approval within ten days of this Order. The Court notes that the stipulation need only be executed by Plaintiff.

V. Conclusion

Defendant City of Palmdale's Motion for Leave to Conduct a Mental Health Examination is DENIED.